



January 24, 2024

Senator Anne Carney
Senate Chair of the Joint Standing Committee
on Judiciary
21 Angell Point Road
Cape Elizabeth, ME 04107

Representative Matt Moonen
House Chair of the Joint Standing Committee
on Judiciary
53 Thomas St., #3
Portland, ME 04102

Senator Lisa Keim
1505 Main Street
Dixfield, ME 04224

Representative Margaret O'Neil
21 Sheila Circle
Saco, ME 04072

RE: LD 1973 and LD 1977 – Oppose

Dear Chair Carney, Chair Moonen, Senator Keim, and Representative O'Neil:

On behalf of the advertising industry, we write to express our continued concern with Maine LD 1973¹ and LD 1977.² As currently drafted, both bills include overly restrictive terms that threaten to significantly impede routine and beneficial data processing practices, such as legitimate and responsible advertising. Such an approach is severely out-of-step with privacy laws in other states and would have far-reaching, unfavorable consequences for both Maine businesses and consumers.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.³ By one estimate, over 20,000 jobs in Maine are related to the ad-subsidized Internet.⁴

We and the companies we represent strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and responsible industry policies and therefore support a national, preemptive standard for data privacy. In the absence of such a preemptive federal law, it is critical that states work to harmonize privacy standards to provide consistent protections for consumers and minimize unnecessary compliance costs. An approach that significantly diverges from privacy laws in other states, like that proposed in LD 1973 and LD 1977, would not only substantially hinder Maine consumers' ability to reach the products and services they rely upon but would also cripple small and mid-size businesses seeking to responsibly implement privacy requirements. We therefore

¹ Maine LD 1973 (131st Leg., First Special Sess., 2023), located [here](#).

² Maine LD 1977 (131st Leg., First Special Sess., 2023), located [here](#).

³ John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located [here](#).

⁴ *Id.* at 127.

respectfully ask the Joint Standing Committee on Judiciary to align these bills with the approach to data privacy taken by a majority of states with privacy laws across the nation.

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With more than a decade's worth of hands-on experience related to consumer privacy and controls, we would welcome the opportunity to engage further and work with you to hone a workable privacy framework that benefits Maine businesses and consumers alike. Thank you for your consideration of this request.

Sincerely,

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